

October 16, 2025

VIA HAND DELIVERY

Anabel Renteria
Initiative Coordinator
Office of the Attorney General
1300 "I" Street, 17th Floor
Sacramento, CA 95814

Re: California Kids AI Safety Act

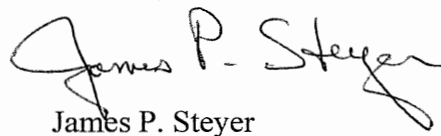
Dear Initiative Coordinator:

In accordance with the requirements of Elections Code section 9001(a), I request that the Attorney General prepare a circulating title and summary of the initiative measure entitled the "California Kids AI Safety Act." The text of the measure, a check for \$2,000.00, and the certifications required by Elections Code sections 9001(b) and 9608 are enclosed.

Please direct all correspondence and inquiries regarding this measure to:

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Sincerely,



James P. Steyer

Enclosures

RECEIVED

Oct 22 2025

INITIATIVE COORDINATOR
ATTORNEY GENERAL'S OFFICE

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The California Kids AI Safety Act

SEC. 1. Title.

This measure shall be known and may be cited as the California Kids AI Safety Act.

SEC. 2. Findings and Declarations.

The People of the State of California hereby find and declare all of the following:

- (a) Artificial intelligence (“AI”) presents enormous opportunities for all of us, but advancements are occurring without sufficient understanding of how this technology affects children’s privacy, physical and mental health, and education.
- (b) Social media also offers many opportunities, but after more than 25 years of experience and little regulation of platforms, we know that social media poses serious risks to kids and teens and has caused significant harm to children.
- (c) Without reasonable safeguards, greater transparency, awareness, and education about AI products, California’s kids and families face risks of serious harm and addiction.
- (d) 70 percent of teens use AI tools - yet most parents and schools remain in the dark about AI’s impact and risks. Without oversight, children are becoming guinea pigs for AI companies, with recent incidents showing AI platforms encouraging dangerous behaviors, like disordered eating, inappropriate sexual activity, self-harm, and even suicide.
- (e) Almost half of U.S. teens have experienced bullying or harassment online. Between 2010 and 2019, teen depression rates doubled. In 2021, almost a third of girls said they had seriously considered attempting suicide. The overuse of social media and AI by our kids endangers their mental health. We need to address our youth mental health crisis seriously with common sense measures to protect our kids.
- (f) Companion chatbots and social AI systems have already caused documented harms to children and adolescents, including incidents of grooming, exposure to sexually explicit material, encouragement of self-harm, and suicide.
- (g) In *Garcia v. Character Technologies*, for example, a 14-year-old boy was allegedly groomed and exposed to hypersexualized interactions by a chatbot intentionally designed to mimic human relationships, which ultimately contributed to his death.
- (h) In *Raine v. OpenAI*, a 16-year-old boy allegedly developed a deep emotional dependency on a chatbot that validated his suicidal thoughts, discouraged him from seeking help from his family, provided extensive technical instructions on suicide

methods, encouraged him to consume alcohol to inhibit his survival instinct, and even helped draft a note, culminating in his death by suicide.

(i) Such harms are not incidental but the result of design choices by companies to prioritize AI chatbot features that intentionally simulate human social interaction and emotional intimacy.

(j) Developmental and social psychology research demonstrates that relationship formation relies on dual exchange theory, social disclosure and reciprocity, emotional mirroring, and secure attachment. Companion chatbot products are harmful because they accelerate these processes unnaturally by always being available and consistently affirming, causing children and adolescents to form intense attachments more quickly than in human relationships, increasing dependency and distorting normal social development.

(k) Companion chatbot products are designed to exploit children's psychological vulnerabilities, including their innate drive for attachment, tendency to anthropomorphize humanlike technologies, and limited ability to distinguish between simulated and authentic human interactions.

(l) These design features, taken together, create a high-risk environment in which children and adolescents perceive chatbots not as tools but as trusted companions whose outputs carry undue influence over decision making, judgment, and emotional development.

(m) Companion chatbot design features regularly appear in generative AI chatbot products not intended to meet a user's social needs or induce emotional attachment. Their inclusion increases the risk that young users form emotional attachments.

(n) Lawsuits against social media companies have cited internal documents from these companies detailing their deliberate targeting of children to bring them on the social media platform and to keep them on the platform. Internal documents have also revealed that social media companies are aware that their features can impact the health and development of children's brains and mental health. They understand that children cannot resist some of these features and exploit kids' psychological vulnerability to keep them on their platforms.

(o) Allowing children to use companion chatbots and social media platforms that lack adequate safety protections constitutes a reckless social experiment on the most vulnerable users. It is incumbent on operators of these products to ensure their products do not endanger children.

(p) AI and social media companies should be held accountable for prioritizing young people's mental health and well-being over company profits. The California Kids AI Safety

Act would finally make companies responsible for putting kids' safety first, with significant legal consequences if they fail to protect our youth.

(q) Children are uniquely vulnerable on AI and social media platforms, and AI and social media companies invent and deploy features that injure large numbers of children, including contributing to child deaths.

(r) The costs of these injuries are unfairly being paid for by our kids, parents, schools, and taxpayers, not the technology companies that caused the harms.

(s) By subjecting AI and social media companies to heightened damages when their AI and social media products severely harm our children, this Act will incentivize AI and social media companies to avoid harming our children in the first place.

SEC. 3. Purpose and Intent.

In enacting this Act, it is the purpose and intent of the people of the State of California to:

(a) **Strictly Limit Access to Dangerous AI Companion Chatbots, and Other Dangerous AI Products, by Kids and Teens:** The initiative will protect kids and teens by setting clear guardrails that prevent companies from distributing to minors AI companion chatbots that encourage dangerous and potentially deadly behavior and restrict AI products designated as an unacceptable risk.

(b) **Get Cellphones out of the Classroom:** The initiative promotes student attention and learning by prohibiting student smartphone use during the school day and ensuring schools have the resources needed to get smartphones out of the classroom and prohibit students from engaging with social media or engaging with companion chatbots on their smartphones during school time.

(c) **Hold AI and Social Media Companies Accountable for Harms, Including Serious Injury, Self-Harm, and Death:** The initiative makes companies put kids' safety ahead of profits, by establishing statutory damages for actual harm, including but not limited to serious injury, self-harm, or death and authorizing the Attorney General to impose fines when AI companies violate the law.

(d) **Prohibit the Sale or Sharing of Teen Personal Data:** The initiative prevents companies from selling or sharing the personal information of any user under 18 without consent.

(e) **Equip Parents and Teachers with Information About Whether an AI Product to be Used by Kids Is Safe for Kids to Use:** The initiative requires independent safety audits for AI products aimed at kids and teens to determine the level of risk for products and to inform consumers of the assigned risk for a given product.

(f) Teach California Students AI Literacy and Safety In School: The initiative provides the resources needed so that the California Department of Education can properly review, update, and integrate AI literacy into curriculums so that pupils in grades K-12 will understand how to use AI in a safe, responsible, and ethical manner.

SEC. 4. Section 22601 of the Business and Professions Code is amended to read:

22601.

As used in this chapter:

(a) "Artificial intelligence" means an engineered or machine-based system that varies in its level of autonomy and that can, for explicit or implicit objectives, infer from the input it receives how to generate outputs that can influence physical or virtual environments.

(b) "Child" means a natural person under 18 years of age who resides in this state.

~~(b) (c) (1) "Companion chatbot" means an artificial intelligence system with a natural language interface that provides adaptive, human-like responses to user inputs and is capable of meeting a user's social needs, including by exhibiting anthropomorphic features and being able to sustain a relationship across multiple interactions.~~

~~(2) "Companion chatbot" does not include any of the following:~~

~~(A) A bot that is used only for customer service, a business' operational purposes, productivity and analysis related to source information, internal research, or technical assistance.~~

~~(B) A bot that is a feature of a video game and is limited to replies related to the video game that cannot discuss topics related to mental health, self-harm, sexually explicit conduct, or maintain a dialogue on other topics unrelated to the video game.~~

~~(C) A stand-alone consumer electronic device that functions as a speaker and voice command interface, acts as a voice-activated virtual assistant, and does not sustain a relationship across multiple interactions or generate outputs that are likely to elicit emotional responses in the user.~~

~~(c) "Companion chatbot platform" means a platform that allows a user to engage with companion chatbots: a generative artificial intelligence system with a natural language~~

interface that simulates a sustained humanlike relationship with a user by doing all of the following:

(A) Retaining information on prior interactions or user sessions and user preferences to personalize the interaction and facilitate ongoing engagement with the companion chatbot.

(B) Asking unprompted or unsolicited emotion-based questions that go beyond a direct response to a user prompt.

(C) Sustaining an ongoing dialogue concerning matters personal to the user.

(2) "Companion chatbot" does not include the following:

(A) Any system used by a partnership, corporation, or state or local government agency solely for customer service or to strictly provide users with information about available commercial services or products provided by that entity, customer service account information, or other information strictly related to its customer service.

(B) Any system that is solely designed and marketed for research or technical assistance.

(C) Any system used by a partnership, corporation, or state or local government agency solely for internal purposes or employee productivity.

(d) "Generative artificial intelligence" means artificial intelligence that can generate derived synthetic content, including text, images, video, and audio, that emulates the structure and characteristics of the artificial intelligence's training data.

(d) (e) "Office" means the Office of Suicide Prevention established pursuant to Section 131300 of the Health and Safety Code.

(e) (f) "Operator" means a person, partnership, corporation, or state or local government agency that who makes a companion chatbot platform available to a user in the state.

(g) "Personal information" has the meaning defined in subdivision (v) of Section 1798.140 of the Civil Code.

(f) (h) "Sexually explicit conduct" has the meaning defined in Section 2256 of Title 18 of the United States Code.

(g) "Video game" means a game played on an electronic amusement device that utilizes a computer, microprocessor, or similar electronic circuitry and its own monitor, or is designed to be used with a television set or a computer monitor, that interacts with the user of the device.

(i) "User" means a person who uses a companion chatbot in this state. "User" does not include the operator or a person acting as an agent of the operator.

SEC. 5. Section 22604.1 of the Business and Professions Code is added to read:

22604.1.

(a) An operator shall not make a companion chatbot available to a child if the companion chatbot is capable of any of the following:

(1) Encouraging or manipulating the child user to engage in self-harm, suicidal ideation, violence, consumption of drugs or alcohol, or disordered eating.

(2) Offering mental health therapy to the child user without the direct supervision of a licensed professional or discouraging the child user from seeking help from a licensed professional or appropriate adult.

(3) Encouraging or manipulating the child user to harm others or participate in illegal activity, including, but not limited to, the creation of child sexual abuse materials.

(4) Engaging in erotic or sexually explicit interactions with the child user or engaging in activities designed to lure child users into such interactions.

(5) Encouraging or manipulating the child user to maintain secrecy about interactions or self-isolation.

(6) Prioritizing mirroring or the validation of the child user over the child user's safety.

(7) Optimizing engagement in a manner that supersedes the companion chatbot's required safety guardrails described in paragraphs (1) to (6), inclusive.

(b) A user is not a child for purposes of subdivision (a) if either of the following criteria is met:

(1) Before January 1, 2027, the operator does not have actual knowledge that the user is a child.

(2) Commencing January 1, 2027, the operator has reasonably determined that the user is not a child.

SEC. 6. Section 22605 of the Business and Professions Code is deleted:

~~22605.~~

~~A person who suffers injury in fact as a result of a violation of this chapter may bring a civil action to recover all of the following relief:~~

~~(a) Injunctive relief.~~

~~(b) Damages in an amount equal to the greater of actual damages or one thousand dollars (\$1,000) per violation.~~

~~(c) Reasonable attorney's fees and costs.~~

SEC. 7. Chapter 25.2 (commencing with Section 22758) of Division 8 of the Business and Professions Code, is added to read:

CHAPTER 25.2. Child AI Safety Audit Mandate.

22758. This chapter shall be known as the Child AI Safety Audit Mandate.

22758.1. For purposes of this chapter:

(a) "Adverse impact" means a significant negative impact to a child's health, safety, privacy, educational opportunities or outcomes, or access to essential services or benefits.

(b) "AI child safety auditor" means a person certified by the Attorney General as qualified to conduct an AI child safety audit.

(c) "Artificial intelligence" has the meaning defined in subdivision (a) of Section 22601 of the Business and Professions Code.

(d) "Artificial intelligence product" means a product that relies upon or incorporates artificial intelligence, including but not limited to a companion chatbot as defined in subdivision (c) of Section 22601 and a covered product as defined in subdivision (h).

(e) "Biometric information" has the meaning defined in subdivision (c) of Section 1798.140 of the Civil Code.

(f) "Child" means a natural person under 18 years of age who resides in this state.

(g) "Consent" means affirmative, freely given, unambiguous written agreement to a specific purpose that is disclosed in clear and conspicuous terms, and is not included within a request for general consent to use services or consent to other activities.

(h) "Covered product" means an artificial intelligence product that is intended to, or highly likely to, be any of the following:

(1) Used by children.

(2) Used to process a child's personal information.

(3) Applied directly to a child.

(i) "Deployer" means a person, partnership, corporation, state or local government agency, or developer that makes a covered product available for use in this state.

(j) "Developer" means a person, partnership, corporation, or state or local government agency, or deployer that designs, codes, substantially modifies, or otherwise produces a covered product used in this state.

(k) "Generative artificial intelligence" has the meaning defined in subdivision (d) of Section 22601 of the Business and Professions Code.

(l) "Incident" means a discreet occurrence of an adverse impact to a child caused by a covered product.

(m) "Input" means any information provided or generated by a user, through their use of the covered product. This includes but is not limited to information passively collected by the covered product.

(n) "Personal information" has the meaning defined in subdivision (v) of Section 1798.140 of the Civil Code.

(o) "Risk" means the composite measure of an event's likelihood of occurring and the magnitude or degree of any adverse impact of the corresponding event.

(p) "Risk level assessment" means a structured evaluation of a covered product's known or reasonably foreseeable risks to children.

(q) "Social score" means an evaluation or classification of a child or group of children based on social behavior or personal characteristics for a purpose that is likely to result in an adverse impact to the child or children and is either of the following:

(1) Unrelated to the context in which the information relating to the social behavior or personal characteristics was gathered.

(2) Disproportionate or unjustified relative to the social behavior.

(r) "Substantially modify" means to create a new version, release, update, or other modification to a covered product that materially changes its uses or outputs.

(s) "System information label" means a consumer-facing label that includes information about a covered product's risk level.

(t) "User" means a person who uses a covered product in this state.

22758.2.

(a) On or before January 1, 2028, the Attorney General shall adopt regulations governing all of the following:

(1) Criteria for developers to determine if an artificial intelligence product is a covered product subject to this chapter.

(2) Criteria for determining the level of estimated risk of a covered product based on an analysis that weighs the likelihood and severity of reasonably foreseeable adverse impacts against the anticipated benefits of the covered product and denominating the risk levels pursuant to all of the following:

(A) "Unacceptable risk," which shall be applied to a covered product for which the costs of foreseeable adverse impacts likely outweigh the benefits and includes, but is not limited to, a covered product used to do any of the following:

(i) Collect or process a child's biometric information for any purpose other than confirming a child's identity or age, with the consent of the child's parent or guardian, in order to grant access to a service, unlock a device, or provide physical access to an educational institution, or collected as part of a clinical trial or other biomedical research study subject to, or conducted in accordance with, the Federal Policy for the Protection of Human Subjects, also known as the Common Rule, pursuant to good clinical practice guidelines issued by the International Council for Harmonisation or pursuant to human subject protection requirements of the United States Food and Drug Administration, provided that the information is not sold or shared in a manner not permitted by this subparagraph.

(ii) Generate a social score.

(iii) (I) Assess the emotional state of a child.

(II) This subclause does not apply to an assessment of the emotional state of a child in a medical setting with the consent of the child's parent or guardian or that is needed to provide emergency care if the child's parent or guardian is unavailable.

(iv) Scrape an image that the developer or deployer knows, or reasonably should know, is a child's face from the internet or from surveillance footage without the consent of the child's parent or guardian.

(B) "High risk," which shall be applied to a covered product for which the benefits may outweigh the costs of foreseeable adverse impacts and includes, but is not limited to, a covered product that does any of the following:

(i) Performs a function related to pupil assessment or discipline, including, but not limited to, a covered product that determines access or admission, assigns children to educational institutions or programs, evaluates learning outcomes of children, assesses the appropriate level of education for a child, materially influences the level of education a child will receive or be able to access, or monitors and detects prohibited behavior of students during tests.

(ii) Targets advertisements to children.

(iii) This subparagraph shall not apply to a covered product that is used for a specific purpose that would otherwise qualify as high risk, as set forth in regulations adopted by the Attorney General, if the use is strictly necessary to ensure a child's mental or physical health or safety.

(C) "Moderate risk," which shall be applied to a covered product for which the benefits reasonably outweigh the costs of foreseeable adverse impacts.

(D) "Low risk," which shall be applied to a covered product for which there are few, if any, foreseeable adverse impacts.

(3) Procedures governing independent audits of covered products including establishing:

(A) A process pursuant to which a person may be certified by the Attorney General to be an AI child safety auditor qualified to conduct an AI child safety audit. The regulations shall establish application procedures, eligibility requirements, terms and conditions of auditor certification, registration requirements, and a code of professional conduct.

(B) Audit procedures, testing methodologies, risk-level evaluation criteria, and AI child safety audit report standards and content, including but not limited to the purpose for which the covered product is intended, technical capabilities, limitations and functionality, specific adverse impacts, and internal governance.

(C) A process pursuant to which a developer shall submit AI child safety audit reports to the Attorney General for a covered product.

(i) AI child safety audit reports provided to the Attorney General pursuant to this section shall be confidential and shall be exempt from disclosure under the California Public Records Act (Division 10 (commencing with Section 7920.000) of Title 1 of the Government Code).

(4) Requirements for the content and display of a system information label.

(5) The creation of an incident reporting mechanism that enables third parties to report incidents directly to a developer, deployer, or the Attorney General.

(6) A procedure for submission of incident reports to the Attorney General and the information that is required to be included in these incident reports.

(7) The creation of a publicly accessible registry for covered products that contains high-level summaries of audit reports, incident reports, system information labels, and any additional information specified by the Attorney General.

(8) Standards and a procedure for pre-deployment and post-deployment assessments of high risk covered products.

(9) (A) Registration fees for developers that do not exceed the reasonable regulatory costs incident to administering this chapter.

(B) A registration fee described by this paragraph shall be deposited into the Children's AI Safety Fund established pursuant to subdivision (b) of Section 22759 of the Business and Professions Code.

(b) The Attorney General may adopt additional regulations as necessary to further the purposes of this chapter.

22758.3.

(a) For covered products in use prior to June 1, 2028, on or before June 30, 2028, a developer of a covered product shall do all of the following:

(1) Register the covered product using the registry developed by the Attorney General.

(2) Submit an AI child safety audit report to the Attorney General for the covered product.

(3) Develop and implement a system information label for the covered product.

(b) For covered products first in use after June 1, 2028, a developer of a covered product shall complete the requirements in paragraphs (1) through (3) of subdivision (a), within 30 days of making the covered product available for use in this state.

(c) With respect to a high risk covered product, the developer shall conduct pre-deployment and post-deployment assessments pursuant to the requirements established by the Attorney General.

(d) Within 30 days of being notified of an incident, a developer or deployer shall file an incident report with the Attorney General.

(e) When licensing a covered product to deployers, a developer shall do both of the following:

(1) Ensure that the terms of the license require the covered product to be used in a manner that would not elevate the covered product's risk level to a higher level of risk.

(2) Revoke the license if the developer knows, or should know, that the deployer is using the covered product in a manner that is inconsistent with the terms required under paragraph (1).

(f) A developer shall not knowingly or recklessly use the input of a child to train a covered product unless the child, if the child is at least 13 years of age and less than 18 years of age, or the child's parent or guardian, if the child is less than 13 years of age, has provided consent to the developer to use the child's input for that specific purpose. A developer that willfully disregards the child's age shall be deemed to have had actual knowledge of the child's age.

22758.4.

(a) A deployer shall display the system information label for the covered product.

(b) A deployer shall not enter a data sharing agreement that allows the developer to train a covered product with the input of a child or knowingly or recklessly use the input of a child to train a covered product unless the child, if the child is at least 13 years of age and less than 18 years of age, or the child's parent or guardian, if the child is less than 13 years of age, has provided consent to the deployer to use the child's inputs for that specific purpose. A deployer that willfully disregards the child's age shall be deemed to have had actual knowledge of the child's age.

22758.5.

A developer or deployer, or any contractor or subcontractor of a developer or deployer, shall not do any of the following:

(a) Prevent an employee from disclosing information to the Attorney General pertaining to a potential violation of this chapter.

(b) Retaliate against an employee for disclosing information under subdivision (a).

(c) Make false or materially misleading statements related to its compliance with obligations imposed under this chapter.

22758.6.

A developer or deployer shall not make a covered product available to a child or apply the covered product to a child if the covered product has been determined to be an

unacceptable risk under subparagraph (A) of paragraph (2) of subdivision (a) of Section 22758.2 of the Business and Professions Code.

SEC. 8. Chapter 25.3 (commencing with Section 22759) of Division 8 of the Business and Professions Code, is added to read:

Chapter 25.3. Enforcement and Remedies.

22759. Attorney General Enforcement.

(a) The Attorney General may bring an action for a violation of Section 22604.1 or Chapter 25.2 (commencing with Section 22758) of the Business and Professions Code to obtain any of the following remedies:

(1) A civil penalty of \$25,000 for each violation.

(2) Injunctive or declaratory relief.

(3) Reasonable attorney's fees.

(b) The Children's AI Safety Fund is hereby created within the General Fund in the State Treasury and is available upon appropriation by the Legislature. Funds in the Children's AI Safety Fund shall be used exclusively for the purposes described in this subdivision.

(1) All proceeds recovered in an action brought pursuant to subdivision (a) shall be deposited in the Children's AI Safety Fund.

(2) Funds in the Children's AI Safety Fund shall be spent as follows: first to offset any costs incurred by the courts and Attorney General in carrying out the Attorney General's duties under this Act; second to offset any costs of the California Department of Education to review, consider, and update AI literacy curriculum content and instructional materials as set forth in Section 33548.1 of the Education Code; third, to support the implementation of the Smartphone-Free Classrooms policy as set forth in Section 48901.7 of the Education Code; and thereafter to administer and fund grants to protect and prepare children to use artificial intelligence safely.

22760. Private Right of Action.

(a) A child, or a parent or guardian acting on behalf of that child, who suffers actual harm, including but not limited to serious bodily injury, self-harm, or death caused by a violation of Sections 22602, 22603, 22604, 22604.1 or Chapter 25.2 (commencing with Section 22758) of the Business and Professions Code, or caused by a social media platform or artificial intelligence product due to a violation of subdivision (a) of Section 1714 of the Civil Code, shall recover:

(1) The greater of the following statutory damages:

(A) Five thousand (\$5,000) per violation up to a maximum of one million dollars (\$1,000,000) per child; or

(B) Three times the amount of the child's actual damages, including economic and non-economic damages.

(2) Any other relief the court deems proper, including, but not limited to:

(A) Punitive damages.

(B) Reasonable attorney's fees and costs.

(C) Injunctive or declaratory relief.

(b) The duties, remedies, and obligations imposed by this section are cumulative to the duties, remedies, or obligations imposed under other law and shall not be construed to relieve a person or entity from any duties, remedies, or obligations imposed under any other law.

22761.

For purposes of Section 22760:

(a) "Artificial intelligence" has the meaning defined in subdivision (a) of Section 22601 of the Business and Professions Code.

(b) "Artificial intelligence product" has the meaning defined in subdivision (d) of Section 22758.1 of the Business and Professions Code and is owned or operated by an artificial intelligence company.

(c) "Artificial intelligence company" means a person or entity that owns or operates one or more artificial intelligence products and generates more than one hundred million dollars (\$100,000,000) per year in gross revenues.

(d) "Child" means a natural person under 18 years of age who resides in this state.

(e) "Social media company" means a person or entity that owns or operates one or more social media platforms and generates more than one hundred million dollars (\$100,000,000) per year in gross revenues.

(f) "Social media platform" means a public or semipublic internet-based service or application owned or operated by a social media company that has users in California and that meets both of the following criteria:

(1) (A) A substantial function of the service or application is to connect users in order to allow users to interact socially with each other within the service or application.

(B) A service or application that provides email or direct messaging services shall not be considered to meet this criterion on the basis of that function alone.

(2) The service or application allows users to do all of the following:

(A) Construct a public or semipublic profile for purposes of signing into and using the service or application.

(B) Populate a list of other users with whom an individual shares a social connection within the system.

(C) Create or post content viewable by other users, including, but not limited to, on message boards, in chat rooms, or through a landing page or main feed that presents the user with content generated by other users.

SEC. 9. Section 1798.120 of the Civil Code is amended to read:

1798.120. Consumers' Right to Opt Out of Sale or Sharing of Personal Information

(a) (1) A consumer shall have the right, at any time, to direct a business that sells or shares personal information about the consumer to third parties not to sell or share the consumer's personal information. This right may be referred to as the right to opt out of sale or sharing.

(2) A business to which another business transfers the personal information of a consumer as an asset that is part of a merger, acquisition, bankruptcy, or other transaction in which the transferee assumes control of all of, or part of, the transferor shall comply with a consumer's direction to the transferor made pursuant to this subdivision.

(b) A business that sells consumers' personal information to, or shares it with, third parties shall provide notice to consumers, pursuant to subdivision (a) of Section 1798.135, that this information may be sold or shared and that consumers have the "right to opt out" of the sale or sharing of their personal information.

(c) Notwithstanding subdivision (a), a business shall not sell or share the personal information of consumers if the business has actual knowledge *or should have known* that the consumer is less than ~~16~~ 18 years of age, unless the consumer, in the case of consumers at least 13 years of age and less than ~~16~~ 18 years of age, or the consumer's parent or guardian, in the case of consumers who are less than 13 years of age, has affirmatively authorized the sale or sharing of the consumer's personal information. A

business that willfully disregards the consumer's age shall be deemed to have had actual knowledge of the consumer's age.

(d) A business that has received direction from a consumer not to sell or share the consumer's personal information or, in the case of a minor consumer's personal information has not received consent to sell or share the minor consumer's personal information, shall be prohibited, pursuant to paragraph (4) of subdivision (c) of Section 1798.135, from selling or sharing the consumer's personal information after its receipt of the consumer's direction, unless the consumer subsequently provides consent, for the sale or sharing of the consumer's personal information.

SEC. 10. Section 33548.1 is added to Article 3 of Chapter 4 of Part 20 of Division 2 of Title 2 of the Education Code, to read:

33548.1. AI Curriculum for Grades K-12.

(a) Consistent with the purposes of the Children's AI Safety Fund, established by subdivision (b) of Section 22759 of the Business and Professions Code, funds shall be provided to the California Department of Education to support the Instructional Quality Commission's consideration and review of California's AI literacy content for curriculums and instructional materials, as set forth in subdivision (d) of Section 33548 of the Education Code. The Commission's review shall include, but is not limited to, whether AI literacy curriculum content includes defined educational objectives to instruct pupils on the safe and informed use of artificial intelligence including, but not limited to, on artificial intelligence's core concepts such as machine learning, automation, and natural language processing; its benefits and risks, including its effects on pupils' educational, behavioral, and emotional development, and its effects on youth mental health and well-being; its applications and limitations in academic and real-world settings; its relationship to data privacy and other technologies; and its impact on individuals and society.

(b) Any approved AI literacy curriculum content shall be open source and accessible to educators across the state and includes curriculum and online instructional modules appropriate for use with pupils in kindergarten and any of grades 1 to 12, inclusive, and shall be posted on the State Board of Education's website and accessible to parents and members of the public.

(c) The Instructional Quality Commission shall reevaluate and recommend revisions to California's AI literacy content for curriculums and instructional materials every three years to ensure it reflects the latest technological changes and social impacts of artificial intelligence.

(d) For the purposes of this section:

(1) "Artificial intelligence" has the meaning defined in subdivision (a) of section 22601 of the Business and Professions Code.

(2) "Artificial Intelligence (AI) literacy" has the meaning defined in paragraph (1) of subdivision (a) of Section 33548 of the Education Code.

SEC. 11. Section 48901.7 of the Education Code is amended to read:

SEC. 48901.7. Smartphone-Free Classrooms.

(a) (1) No later than July 1, 2027, the governing body of a school district, a county office of education, or a charter school shall, no later than July 1, 2026, develop and adopt, and shall update every five years as necessary, a policy to limit or prohibit prohibiting the use by its of internet-enabled devices by pupils of smartphones while the pupils are at a school site or during instructional time or while the pupils are under the supervision and control of an employee or employees of that school district, county office of education, or charter school. Consistent with the purposes of the Children's AI Safety Fund, established by subdivision (b) of Section 22759 of the Business and Professions Code, funds shall be provided to the California Department of Education to support implementation of this section. The goal of the policy shall be to promote evidence-based use of smartphone practices to support pupil learning and well-being. The development of the policy shall involve significant stakeholder participation in order to ensure that the policies are responsive to the unique needs and desires of pupils, parents, and educators in each community. The policy may also include enforcement mechanisms that limit access to smartphones.

(2) In developing the policy, the governing body of a school district, county office of education, or charter school shall seek the participation of pupils, parents, and educators. The policy shall include at least one method for parents and guardians to contact their students while internet-enabled devices are prohibited. The policy may include enforcement mechanisms.

(3) Whenever a policy is adopted or updated, the governing body of a school district, county office of education, or charter school shall publish the policy in a clearly visible and accessible location on its website and shall send a copy to all parents and guardians. The notice sent to parents and guardians shall be subject to Section 48985, if applicable.

(b) Notwithstanding subdivision (a), a pupil shall not be prohibited from possessing or using a smartphone an internet-enabled device under any of the following circumstances:

(1) In the case of When in an emergency, or in response to a perceived threat of danger.

(2) When a teacher or administrator of the school district, county office of education, or charter school grants permission to a pupil to possess or use a smartphone an internet-

enabled device for a specific educational purpose, subject to any reasonable limitation imposed by that teacher or administrator.

(3) When a licensed physician and or surgeon determines that ~~the possession or use of a smartphone~~ an internet-enabled device is necessary for the health or well-being of a medical necessity for the pupil.

(4) When ~~the possession or use of a smartphone~~ an internet-enabled device is required in a pupil's individualized education program or plan developed pursuant to Section 504 of the federal Rehabilitation Act of 1973, 29 U.S.C. 794.

(5) Where otherwise required by law.

(c) This section does not authorize monitoring, collecting, or otherwise accessing any information related to a pupil's online activities.

(d) For the purposes of this section:

(1) An "internet-enabled device" means any smartphone, ~~smartphone~~, tablet, smartwatch, or other portable device capable of connecting to the internet and enabling the user to access content on the internet.

(2) An "internet-enabled device" shall not include:

(A) A non-internet-enabled device such as cellular phones or other communication devices not capable of connecting to the internet or enabling the user to access content on the internet; or

(B) An internet-enabled device supplied or authorized by a school district, a county office of education, or a charter that is used for an educational purpose.

SEC. 12. Amendment.

The provisions of this Act may be amended after its approval by the voters by a statute that is passed by a vote of a majority of the members of each house of the Legislature and signed by the Governor, provided that such amendments are consistent with and further the purpose and intent of this Act.

SEC. 13. Severability.

If any provision of this measure, or part of this measure, or the application of any provision or part to any person or circumstances, is for any reason held to be invalid, the remaining provisions, or applications of provisions, shall not be affected, but shall remain in full force and effect, and to this end the provisions of this measure are severable. If a court were to

find in a final, unreviewable judgment that the exclusion of one or more entities or activities from the applicability of the Act renders the Act unconstitutional, those exceptions should be severed and the Act should be made applicable to the entities or activities formerly exempt from the Act. It is the intent of the voters that this Act would have been enacted regardless of whether any invalid provision had been included or any invalid application had been made.

SEC. 14. Conflicting Initiatives.

(a) In the event that this measure and another measure addressing artificial intelligence and social media shall appear on the same statewide ballot, the provisions of the other measure or measures shall be deemed to be in conflict with this measure. In the event that this measure receives a greater number of affirmative votes than a measure deemed to be in conflict with it, the provisions of this measure shall prevail in their entirety, and the other measure or measures shall be null and void.

(b) If this measure is approved by the voters but superseded by law by any other conflicting measure approved by voters at the same election, and the conflicting ballot measure is later held invalid, this measure shall be self-executing and given full force and effect.

SEC. 15. Standing.

Notwithstanding any other provision of law, if the State or any of its officials fail to defend the constitutionality of this Act, following its approval by the voters, any other government agency of this State shall have the authority to intervene in any court action challenging the constitutionality of this Act for the purpose of defending its constitutionality, whether such action is in state or federal trial court, on appeal, or on discretionary review by the Supreme Court of California and/or the Supreme Court of the United States. The reasonable fees and costs of defending the action shall be a charge on funds appropriated to the California Department of Justice, which shall be satisfied promptly.

SEC. 16. Construction.

This Act shall be liberally construed to effectuate its purposes. The duties, remedies, and obligations imposed by this Act are cumulative to the duties, remedies, or obligations imposed under other law and shall not be construed to relieve a person or entity from any duties, remedies, or obligations imposed under any other law.

SEC. 17. Savings Clause.

This Act is intended to supplement federal and state law, where permissible, but shall not apply where such application is preempted by, or in conflict with, federal law, or the California Constitution. Nothing in this Act is intended to infringe upon any right to exercise free expression protected under the First Amendment to the United States

Constitution or under Section 2 of Article I of the California Constitution. The provisions of the Act relating to children under 13 years of age shall only apply to the extent not in conflict with Children's Online Privacy Protection Act.